

## 22STCV11270 22STCV11270

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-09-09

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Case Number: 22STCV11270 Hearing Date: September 9, 2026 Dept: D

STEPHANIE ALLEN, ET AL. V. COUNTY OF LOS ANGELES, ET AL.

CASE NO.: 22STCV11270

HEARING: 09/10/2026 @ 9:30 a.m.

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### TENTATIVE ORDER

Defendants County of Los Angeles and Casey Leoffler's motion for summary judgment is GRANTED.

Moving party to give notice.

Defendant County of Los Angeles and Casey Leoffler (Defendants) move for summary judgment, or in the alternative summary adjudication, against Plaintiffs Stephanie Allen, by and through her guardian ad litem, Gwen Allen. (Plaintiff).

### Background

On December 5, 2025, Plaintiff filed the operative First Amended Complaint against the County, Leoffler, State of California, McCormick Ambulance, and Does 1-20, asserting two causes of action: (1) Gross Professional Negligence; and (2) Negligent Supervision and Retention of Employees.

Plaintiff alleges that the County's employees failed to meet the standard of care when providing emergency medical treatment to Plaintiff on January 16, 2021, after she was involved in a catastrophic motor vehicle accident, which rendered Plaintiff mentally and physically dependent due to a traumatic brain injury. Specifically, Plaintiff alleges that Defendants propped Plaintiff up against a tree without provide any other assistance, assessment, attention, transportation to a hospital or other trauma center, or any other manner of care. Plaintiff alleges that Defendants instead decided to prioritize the care of the other individuals involved in the accident, despite Plaintiff's obvious comparative needs relative to the other individuals.

Plaintiff alleges that by the time Plaintiff was transported from the scene, she was unresponsive as she had suffered a worsening midline shift in her brain. She alleges that had Defendants provided Plaintiff the requisite and prompt care, attention and prioritized transportation from the scene in light of her relatively severe injuries, the worsening injuries could have been timely transported and promptly received care to address the injuries and reduce the severity and permanent nature of said injuries.

On March 16, 2026, Defendant filed this motion for summary judgment, or in the alternative, summary adjudication. No opposition has been filed.

#### Legal Standard

Summary judgment is proper "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law."

(Code Civ. Proc., §437c(c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).)

A defendant moving for summary judgment must show either (1) that one or more elements of the cause of action cannot be established or (2) that there is a complete defense to that cause of action.

(*Id.* at § 437c(p).) A defendant may discharge this burden by furnishing either (1) affirmative evidence of the required facts or (2) discovery responses conceding that the plaintiff lacks evidence to establish an essential element of the plaintiff's case. If a defendant chooses the latter

option, he or she must present evidence “and not simply point out that plaintiff does not possess and cannot reasonably obtain needed evidence....” (Aguilar, supra, 25 Cal.4th at 865-66.)

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action; however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (Code Civ. Proc., §437c(p)(2).) On a motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (D'Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21.)

#### Factual Background

On January 16, 2021, at approximately 5:00 p.m., Plaintiff was driving westbound on 135th St. at Broadway in the City of Compton, when another driver (Juan Carlos Rodriguez) was driving northbound on Broadway at 135th St, ran a red-light, and collided into Plaintiff's vehicle at approximately 80-90 miles per hour. (UMF 1.) Due to the collision Plaintiff's vehicle crashed into a fire hydrant, causing the fire hydrant to burst. (UMF 2.)

At 5:04 p.m., multiple 911 calls were made to California Highway Patrol (CHP) regarding Plaintiff and Rodriguez's motor vehicle accident, requesting medical/paramedics. (UMF 3.)

Pursuant to the 911 calls, CHP officers were dispatched to the scene and Los Angeles County Fire Department (LACFD), Station unit E95, was also dispatched. (UMF 5.)

At 5:10 p.m., Plaintiff called her niece Jasmyne Fine (Fine) providing she was in an accident. Fine then drove to the intersection of 135th St at Broadway and attempted to locate Plaintiff. When Fine discovered Plaintiff, Plaintiff was not near the scene of the accident, but approximately 25-30 feet away due to the water coming out of the fire hydrant near her vehicle. (UMF 6-7.) Further, when Fine was at Plaintiff's side, Plaintiff was communicative and provided that her head hurt and was pulled out of her vehicle

by some bystanders. Fine observed Plaintiff with no visible injuries. (UMF 8.)

During this time, law enforcement personnel were first to arrive on the scene. LACFD Station unit E95 arrived at 5:15 p.m. (UMF 9-10.) Upon arrival at the scene of the accident LACFD personnel began securing the scene of the accident, canvassing the scene to identify patients and identified two patients. EMTs Morales and Hayes began their triage of those patients, whereas Captain Magana continued his efforts to identify additional patients. (UMF 11.) At this time, Plaintiff was not identified by LACFD as she was away from the scene and Fine did not come forward to apprise LACFD personnel that Plaintiff was involved in the accident. (UMF 12.)

After a few minutes, an unidentified bystander came forward and notified LACFD personnel that Plaintiff was also in the accident and needed medical attention. Upon being notified, EMT Morales began triaging Plaintiff at 5:22 p.m. (7-minutes after arriving on scene), and obtained vitals of Pulse 100, Respiratory Rate

18, O2 Saturation 99%. (UMF 13.) Initially, Plaintiff was observed with no obvious signs of distress, but was noted for head swelling to occipital, minor face laceration, and potential right knee injury. (UMF 14.) However, Plaintiff lost consciousness during triage, and Captain Magana requested advanced life support services

from LACFD and an ambulance to transfer Plaintiff to the hospital based on impressions of traumatic brain injury (blunt head injury). (UMF 15.)

LACFD unit Station 14 was dispatched consisting of two paramedics, one being Casey Leoffler. (UMF 16.) Until the paramedics arrived, EMT Morales stayed at Plaintiff's side rendering basic life support. At approximately 5:28 p.m., the paramedics arrived at the scene and began rendering advanced life support (ALS) to Plaintiff. (UMF 17-18.) Shortly thereafter McCormick Ambulance arrived and were at Plaintiff's side at 5:38 p.m., for transportation. Plaintiff was then placed on a gurney and loaded into McCormick's vehicle. (UMF 19.) Paramedic Murrieta also

continued with ALS and accompanied Plaintiff in McCormick's vehicle. (UMF 20.) At 5:45 p.m., McCormick departed to the hospital with lights and siren on. (UMF 21.)

While enroute to the hospital, paramedic Murrieta continued with ALS to Plaintiff and administered an IV. McCormick, paramedic Murrieta, and Plaintiff arrived at the hospital at 5:55 p.m., and Plaintiff's care was subsequently transferred to hospital emergency medical staff at 6:02 p.m. LACFD total care time of Plaintiff was 32 minutes. (UMF 22-23.)

#### Analysis

Defendants move for summary judgment as to both causes of action for gross professional negligence, and negligent supervision and retention on the grounds that: (1) the County Fire Department personnel and Leoffler complied with the applicable standard of care at all times; (2) no act of omission on the part of County personnel and Leoffler contributed to Plaintiff's alleged injuries; and (3) the County personnel or Leoffler were not grossly negligent.

#### First Cause of

#### Action: Gross Professional Negligence

Neither a public entity nor emergency rescue personnel shall be liable for an injury caused by an action taken by the emergency rescue personnel acting within the scope of their employment to provide emergency services, unless the action taken was performed in bad faith or in a grossly negligent manner. (Health & Saf. Code, § 1799.107, subd. (b).) For purposes of this section, it shall be presumed that the action taken when providing emergency services was performed in good faith and without gross negligence. This presumption shall be one affecting the burden of proof. (Health & Saf. Code, § 1779.107, subd. (c).)

Health and Safety Code section 1779.107 does not establish a mandatory duty on the part of public agencies to provide emergency services to the public. (Eastburn v. Regional Fire Protection Authority (2003) 31 Cal.4th 1175, 1181.) Rather, the section "merely defines the level of negligence that will result in the imposition of liability once assistance is rendered." (Ibid.)

"The term gross negligence means the failure to provide even scant care or an extreme departure from the ordinary standard of conduct." (Wright v. City of Los Angeles (1990) 219 Cal.App.3d 318, 343.) "It is not

necessary that the information available to the paramedics make a particular risk foreseeable . . . Paramedics do not necessarily deal with causes; they deal with symptoms. It is only necessary that the paramedics recognize the types of symptoms which it is reasonably foreseeable could result in serious injury or death and treat or get treatment for those symptoms." (Id., at 346-347.)

In *Zepeda v. City of Los Angeles* (1990) 223 Cal.App.3d 232, the decedent was shot in the neck and the city's paramedics refused to render medical attention or otherwise assist decedent until police arrived at the scene. The decedent eventually died and his parents filed suit against the city alleging the paramedics had breached a duty to come to the aid of decedent or at least make inquiry as to the status of the decedent. (Id., at 234.) However, the court noted that as a general rule, one has no duty to come to the aid of another. (Id., at 235.) The court held that the emergency personnel involved did not create the peril, did not voluntarily assume a special duty to assist, made no promise or statement to induce reliance, and did not increase the risk of harm that otherwise existed.

Therefore, they could not negligently perform an act they had not undertaken to perform and to that extent, the plaintiffs' pleading was defective on its face. (Id., at 236.) The appellate court in *Zepeda* noted that "[u]nlike the instant case, the paramedics in *Wright* actually examined the victim and thus were held to the standard of care set forth in section 1799.106. Here, of course, the City's paramedics provided no form of assistance and were not obligated to do so either by statute or common law rule." (Id., at 237.)

The elements of medical malpractice are: "(1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence." (*Simmons v. West Covina Medical Clinic* (1989) 212 Cal.App.3d 696, 701-702 (citations omitted).) "Both the standard of care and defendants' breach must normally be established by expert testimony in a medical malpractice case." (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.)

Thus, in a medical malpractice case, "[w]hen a defendant moves for

summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence.” (Munro v. Regents of University of California (1989) 215 Cal.App.3d 977, 984-985 (citations omitted).) An expert declaration, if uncontradicted, is conclusive proof as to the prevailing standard of care and the propriety of the particular conduct of the health care provider. (Starr v. Mooslin (1971) 14 Cal.App.3d 988, 999.)

Here, Defendants present the expert opinion of Gary Vilke, M.D., FACEP, FAAEM, a Board-Certified physician, who, based on his education, training and experience, opines that Defendant County, its fire personnel, and Leoffler complied with the applicable Standard of Care for Paramedic/EMS providers. (Vilke Decl., ¶¶ 1, 9.)

The standard of care requires EMS personnel to perform a scene assessment (size up) upon arrival to the scene of the emergency. It is paramount that the scene of the emergency is secure (safe), identifying/assessing the number of patients, prioritizing the most immediately life-threatening injuries patients and managing the scene. Size up continues until all patients are identified, triaged with BLS or ALS, then secured, and transported from the scene as quickly as possible to their respective receiving hospitals. (Id., ¶ 9a.)

Prior to LACFD personnel arriving at the scene, multiple 911 calls were received, which reflect a very hectic scene, two-car collision at an intersection, multiple individuals injured, patrons assisting individuals out of their vehicles, and a fire hydrant bursting. (Id., ¶ 9b.)

Prior to LACFD personnel's arrival Plaintiff was pulled from her vehicle, and was observed by her niece (Fine), with no bleeding or any apparent injuries. (Id., at 9c.) LACFD personnel were completely unaware of Plaintiff initially, due to her being away from the scene of the accident (25-30 feet away), and no one apprising LACFD personnel Plaintiff was involved in the accident, despite LACFD personnel's best efforts to continuously size up the scene. (Id., ¶ 9e.)

After 7-minutes of LACFD personnel being on scene rendering emergent care to other patients, LACFD personnel were first notified that Plaintiff was

in the accident and needed medical attention. EMT Morales immediately diverted his attention to Plaintiff and began triaging her at 5:22 p.m., as a priority patient. (Id., ¶ 9f.)

Moreover, once LACFD personnel became aware of Plaintiff, Captain Magana requested ALS service from LACFD and an ambulance to transfer Plaintiff to Harbor UCLA based on impressions of blunt head injury. (Id., ¶ 9g.)

Paramedics Murrieta and Leoffler arrived at approximately 5:28 p.m., to render ALS services to Plaintiff. McCormick arrived at 5:38 p.m., to Plaintiff's side, and Plaintiff was immediately secured and loaded onto McCormick's vehicle. Paramedic Murrieta continued with ALS services to Plaintiff, while McCormick's vehicle was enroute to Harbor UCLA. There were no issues with the care rendered to Plaintiff. (Id., ¶ 9h.)

Plaintiff arrived at Harbor UCLA at 5:55 p.m., and Plaintiff's care was subsequently

transferred to Harbor UCLA emergency medical staff at 6:02 p.m. Based on the circumstances presented to LACFD personnel, there was no delay in transportation of Plaintiff, and the total time of care was 32 minutes. (Id., ¶ 9i.)

Further, Dr. Vilke also opines that that there was no negligent act or omission by the LACFD personnel that caused Plaintiff's injuries. (Id., ¶ 10.)

The Court finds that Defendants have met their initial burden on summary judgment to show no triable issues of material fact exist as they met the applicable standard of care because they were performing a size up of the scene and unaware of Plaintiff due to being 25-30 feet away, and once they became aware of Plaintiff ALS service was performed and she was transported to a hospital. There were further no issues in the ambulance. The burden shifts to Plaintiff to present triable issues of material fact.

Plaintiff has not filed an opposition and therefore has failed to submit evidence to meet her burden of demonstrating triable issues of material fact. As such, Defendants are entitled to summary adjudication as to the first cause of action.

Second Cause of Action: Negligent Supervision  
and Retention



A cause of action for negligent hiring, supervision, or retention of an employee requires the following elements: (1) the employer hired employee; (2) the employee was/became unfit or incompetent to perform the work for which he was hired; (3) the employer knew or should have known the employee was/became unfit or incompetent and that this unfitness or incompetence created a particular risk to others; (4) the employee's unfitness or incompetence harmed plaintiff; and (5) the employer's negligence in hiring/supervising/ retaining the employee was a substantial factor in causing plaintiff's harm. (Federico v. Superior Court (1997) 59 Cal.App.4th 1207, 1213-1214.) To establish a cause of action for negligent hiring, retention, or supervision, a plaintiff must show that the employer knew or should have known that hiring or retaining the employee created a particular risk or hazard and that particular harm occurs. (See Z.V. v. County of Riverside (2015) 238 Cal.App.4th 889, 902; Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054.) Negligent hiring, retention, or supervision is a form of direct negligence. (Ibid.)

Defendant contends as set forth in Dr. Vilke's declaration, there was no extreme departure from the ordinary standard of care by Leoffler. Defendant contends it is undisputed that Leoffler did not personally assess Plaintiff but was merely at the

scene of the accident assisting other LACFD personnel. (Defendant's Exh. P, Leoffler's Depo., p. 27-29: 22-15.)

The Court agrees that the above evidence also shows that there was no negligence on the part of Leoffler. Thus, Defendant cannot be liable for the negligent supervision or retention of Leoffler.

Again, Plaintiff has failed to file an opposition to meet her burden to present triable issues of material fact. Therefore, Defendants are entitled to summary judgment.

## Conclusion

Based on the foregoing, Defendants County of Los Angeles and Casey Leoffler's motion for summary judgment is GRANTED.